

IN THE COURT OF COUNTY, NEBRASKA

STATE OF NEBRASKA, Case No. _____
Plaintiff,

vs.

Alexandrina-Katharine Montgomery-\,
(your full name) Defendant.

**PETITION TO SET ASIDE
CRIMINAL CONVICTION**

I am the defendant in the above-listed case.

I request this court enter an Order setting aside my conviction.

These are the facts of the conviction I am asking the court to set aside:

1. I was convicted of _____ on _____
(Crime convicted of)
(Date of conviction).
2. I was sentenced to a term of probation, ordered to pay a fine, ordered to complete community service or sentenced to a term of imprisonment for one year or less.
3. I successfully completed my sentence and/or paid all fines and costs in full.

Signature: _____ Date: _____

Printed Name: Alexandrina-Katharine Montgomery-Vandenberg-Oyelaran Fitzwilliam

Street Address/P.O. Box: 12345 Southwest Grandview Boulevard Northeast, Building 7, Apartment 4321-B

City/State/ZIP Code: Unincorporated Township of Long Hollow Crossing, NE 01234-9999

Telephone Number: 555-0142 ext. 44821

*Email address: alexandrina.montgomery.vandenberg.oyelaran.fitzwilliam@department-of-example.example.gov

***Nebraska Supreme Court Rule § 2-208** requires individuals who are not attorneys and representing themselves to provide their email address. The court will use the email address to send notices from the court about this case **except** for items that require another type of service as directed by statute or Nebraska Supreme Court Rule.

If you no longer have email capability or if your email or other contact information changes, you must complete a [Change of Contact Information Form](#).

☐ By checking this box, I am letting the court know that I do not have the ability to receive emails. The reason I cannot receive email is: _____

IN THE COURT OF COUNTY, NEBRASKA

STATE OF NEBRASKA, Case No. _____
Plaintiff,

VS.

Alexandrina-Katharine Montgomery-Vandenberg-Oyalaran Fitzwilliam, _____
(your full name) Defendant.

**ORDER SETTING ASIDE A
CRIMINAL CONVICTION**

This matter came before the court pursuant to the defendant's Motion to Set Aside and nullify this criminal conviction, within the meaning of [Neb. Rev. Stat. § 29-2264](#) of the Nebraska Revised Statutes. This court finds it has subject matter jurisdiction to consider the issue before it, that it is unlikely the defendant will engage in further criminal activity and finds further that it is in the defendant's best interests and is consistent with the public interest to grant the Motion.

Based on these findings, the court orders that the criminal conviction in this case be set aside and nullified, which set aside shall remove any and all civil disabilities and disqualifications allowed by law and imposed as a result of those convictions.

Dated: _____

BY THE COURT:

JUDGE

COMPLETING THE PETITION TO SET ASIDE A CRIMINAL CONVICTION

Use this form to ask the court to set aside a criminal conviction. You may only ask for a set aside for cases where you were sentenced to pay a fine, to complete community service, to probation, or sentenced to a term of imprisonment of one year or less.

You will need to know your case number, the county where the charge was filed, the date of the offense, and the offense you were charged with.

You can get a copy of your criminal history through the [Nebraska State Patrol](#) (There is a small charge to get your record.), do a [one-time court case search](#) of Nebraska Court records (There is a small charge to get your record, but it may not be a complete record.), or by going to the courthouse and using the public access terminal to get information on your record. (There will be a charge for copies provided to you by the court.)

Page 1 of 1

Choose the court and the county using the drop-down lists.

Enter the original case number.

Enter your name exactly as it was listed on the original case.

List the conviction you are asking to have set aside and the date of that conviction.

Read this statement carefully.

If you **CANNOT** receive emails, check the box, and use the lines to explain why you can't.

IN THE COURT OF COUNTY, NEBRASKA

STATE OF NEBRASKA Case No.

Plaintiff

VS

Defendant

PETITION TO SET ASIDE CRIMINAL CONVICTION

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3. I successfully completed my sentence and/or paid all fines and costs in full.

Signature: Date:

Printed Name:

Street Address/P.O. Box:

City/State/ZIP Code:

Telephone Number:

*Email address:

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☐ By checking this box, I am letting the court know that I do not have the ability to receive emails. The reason I cannot receive email is:

Sign the form, and enter your printed name, the date signed, your address, telephone number, and your email address (if you can receive emails).

Type of Case - Check only one:

☐

Probate

☐

Adoption

☐

Emancipation

☐

Name change - Minor

☐

Name change - Adult

The items in this box will NOT print on your form.

☐

Civil, Small Claims, Traffic, and Criminal (includes divorce, child support, custody, etc.)

IN THE _____ COURT OF _____ COUNTY, NEBRASKA

_____,
Plaintiff/Petitioner,

vs.

_____,
Defendant/Respondent.

Case No. _____

**NOTICE OF HEARING
AND CERTIFICATE OF
SERVICE**

To: Name:

Address:

Add next person

You are hereby notified that a hearing on the _____
_____ in the above entitled case will be heard before the Honorable
_____, Judge of the _____ Court of
_____ County, Courtroom No. _____ on the _____ floor of the
_____ County Courthouse or Justice Center, _____
_____, Nebraska, on
_____, at _____ .m., or as soon thereafter as the
same may be heard.

Signature: _____ Date: _____

Printed Name: Alexandrina-Katharine Montgomery-Vandenberg-Oyelaran Fitzwilliam

Street Address/P.O. Box: 12345 Southwest Grandview Boulevard Northeast, Building 7, Apartment 4321-B

City/State/ZIP Code: Unincorporated Township of Long Hollow Crossing, NE 01234-9999

Telephone Number: 555-0142 ext. 44821

Email address: alexandrina.montgomery.vandenberg.oyelaran.fitzwilliam@department-of-example.example.gov

Certificate of Service

I _____, verify that on _____ ,
(date)

I served a true and accurate copy of this notice upon the appropriate parties to this proceeding by depositing the same in the United States mail, postage prepaid, addressed to:

Name:

Address:

Signature: _____ Date: _____

Printed Name: Alexandrina-Katharine Montgomery-Vandenberg-Oyelaran Fitzwilliam

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